

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X 10 CV 5017 (CBA)(JMA)

MICHAEL P. JOHNSON,

Plaintiff,

AMENDED COMPLAINT

-against-

JURY DEMAND

THE CITY OF NEW YORK, POLICE OFFICER
LYNWOOD O. PLEASANT (Shield # 20488), POLICE
OFFICER NICHOLAS VELEZ (Shield # 27107),
SERGEANT ERIC KONOSKI (Shield # 3377) and
POLICE OFFICERS JOHN DOE 1-3¹,

Defendants.

-----X

Plaintiff MICHAEL P. JOHNSON, by his attorney(s), THE LAW OFFICES OF WALE
MOSAKU, P.C., complaining of the defendants, THE CITY OF NEW YORK, POLICE
OFFICER LYNWOOD O. PLEASANT (Shield # 20488), POLICE OFFICER
NICHOLAS VELEZ (Shield # 27107), SERGEANT ERIC KONOSKI (Shield # 3377)
and POLICE OFFICERS JOHN DOE 1-3 (collectively referred to as the Defendants),
upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §§ 1982, 1983 and 1985, [and arising under the law and statutes of the State of New York].

JURISDICTION

2. The jurisdiction of this Court is invoked under 28 U.S.C. §1343(3), this being an action authorized by law to redress the deprivation of rights secured under color of state and city law, statute, ordinance,

¹ The above-referenced officers, upon information and well-founded belief, were and are law enforcement officers employed by the New York City Police Department.

regulation, custom and usage of a right, privilege and immunity secured to the plaintiff by the Fourteenth Amendment to the Constitution of the United States. Jurisdiction of this court exists pursuant to 42 USC §1983 and under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

3. All causes of action not relying exclusively on the aforementioned federal causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction pursuant to 28 U.S.C. §1367 to hear state law causes of action. The events, parties, transactions, and injuries that form the basis of plaintiff's federal claims are identical to the events, parties, transactions, and injuries that form the basis of plaintiff's claims under applicable State and City laws.
4. As the deprivation of rights complained of herein occurred within the Eastern District of New York, venue is proper in this district pursuant to 28 U.S.C. §§1391 (b) and (c).

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

5. All conditions precedent to the filing of this action have been complied with. On May 3, 2010, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff, was served upon the defendant City of New York, by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned the Claim No. 10PI014683.
6. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected and/or refused.
7. This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the claim is based.

THE PARTIES

8. Plaintiff is a resident of the County of Kings, City and State of New York. Plaintiff is a black male of full age.
9. At all relevant times, POLICE OFFICER LYNWOOD O. PLEASANT (Shield # 20488), POLICE OFFICER NICHOLAS VELEZ (Shield # 27107), SERGEANT ERIC KONOSKI (Shield # 3377) and POLICE OFFICERS JOHN DOE 1-3 (hereinafter "defendant officers") were, and upon information and belief, still are, law enforcement officers employed by the Police Department of the City of New York.
10. At all times herein, defendant officers were employed as law enforcement officers of the City of New York, State of New York, and was acting under the color of their official capacity and their acts as alleged herein, were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. Defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and its Police Department.
11. At all relevant times, the defendant City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely New York City Police Department, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
12. Plaintiff sues all defendants in their individual and official capacities.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

13. On or about January 14, 2010, between the hours of 07:00 p.m. and 08:00 p.m., within the premises described as 545 Dumont Avenue, #3G, Brooklyn, New York 11207 ("subject premises"), the plaintiff was falsely arrested without probable cause by the defendant officers

of, upon information and well founded belief, the 75th Police Precinct of the Police Department of the City of New York.

14. At the above-referenced place and time, the plaintiff had gone, along with another friend, namely Marquen Reuben (or "Rubin"), to the subject premises to visit his friend, namely Shayquan Bullock, who resided there. At the time the plaintiff arrived at the subject premises, the persons within the apartment were the following: Mr. Bullock, Mr. Bullock's mother, Mr. Bullock's mother's husband/boyfriend, Mr. Bullock's sister, and Mr. Bullock's sister's infant daughter.
15. The plaintiff and Mr. Reuben went to Mr. Bullock's room, and spent the time watching a program on television.
16. Approximately 10 minutes after they arrived at the subject premises, there was a knock on the door to the subject premises. Mr. Bullock's mother answered the door, and at that time, there were approximately four (4) of the defendant officers, in plain clothes, standing at the doorway to the subject premises.
17. Upon information and well-founded belief, said defendant officers told Mr. Bullock's mother that they had been informed that there was a weapon in the subject premises, and demanded to search said premises.
18. Upon information and well-founded belief, said defendant officers did not have a warrant that permitted the search of the subject premises.
19. The defendant officers then proceeded to search the subject premises, including Mr. Bullock's room.
20. That upon their commencement of the search, three (3) more of the plain clothes defendant officers arrived and participated in the illegal search of the premises.
21. Prior to the time the defendant officers searched Mr. Bullock's room, Mr. Bullock had left his room through a window, after informing the

plaintiff and Mr. Reuben that there was a warrant for his (Mr. Bullock's) arrest.

22. Before the defendant officers searched Mr. Bullock's room, they instructed the plaintiff and Mr. Reuben to go into the living room of the subject premises. The plaintiff complied with said instructions.
23. Approximately 25 minutes after the defendant officers begun their search of Mr. Bullock's room, they exited from said room, and instructed Mr. Reuben to go into the hallway of the subject premises apartment building, in order that they ask him questions. After questioning Mr. Reuben, the defendant officers instructed Mr. Reuben to leave.
24. The defendant officers then returned to the subject premises, and asked the plaintiff if he was Mr. Bullock's sister's boyfriend. The plaintiff denied that he was, and stated that he was only in the subject premises to visit Mr. Bullock.
25. The defendant officers then asked the plaintiff "you know why we are here right?" The plaintiff expressed ignorance of the defendant officer's mission. The defendant officers then claimed that they had recovered a weapon from a fire-escape outside of Mr. Bullock's bedroom window. The plaintiff was then arrested and handcuffed.
26. The plaintiff was then taken to the police precinct where he was fingerprinted and photographed. He was subsequently taken to central booking where he was again processed.
27. On January 15, 2010, at approximately 09:00 p.m., the plaintiff was arraigned before a judge on the following charges.
 - a. New York State Penal Law Section 265.03(3) (Criminal possession of a weapon in the Second Degree); and
 - b. New York State Penal Law Section 265.02(1) (Criminal possession of a weapon in the Third Degree); and
 - c. New York State Penal Law Section 265.01(1) (Criminal possession of a weapon in the Fourth Degree);

28. There was absolutely no basis for the above-referenced charges that were leveled against the plaintiff.
29. Defendant Police Officer Lynwood Pleasant falsely alleged in the criminal complaint that the plaintiff was sitting alone in the bedroom within which he (Pleasant) alleged a weapon was found. That statement was false because, firstly, no weapon was recovered inside of the room, and secondly, another person, namely Marquen Rueben, was also in the room at the same time the defendants began their unlawful search of same.
30. Upon the plaintiff's arraignment, bail was set in the amount of \$7,500.00, which the plaintiff could not afford to post. As such, the plaintiff was remanded to the Rikers Island Correctional Facility ("Rikers"), where he remained until January 23, 2010.
31. Upon information and belief, a grand jury was subsequently empanelled, but refused to indict the plaintiff. As such, the plaintiff was released from "Rikers" on January 23, 2010, at approximately 06:00 a.m.
32. After being compelled to return to court on several occasions in defense of said charges, the criminal case against the plaintiff was dismissed and sealed on April 16, 2010. The criminal court docket number was 2010KN003874.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983/NEW YORK STATE LAW

33. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 32 of this complaint as though fully set forth herein.
34. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.

35. As a result of the plaintiff's above-described false arrest and imprisonment, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been otherwise damaged in his character and reputation.
36. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
37. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.

CAUSE OF ACTION: MALICIOUS PROSECUTION UNDER 42 U.S.C § 1983/NEW YORK STATE LAW

38. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 37 of this complaint as though fully set forth herein.
39. The commencement and continued prosecution of the criminal judicial proceeding against plaintiff, including the arrest, the imprisonment, and the charges against plaintiff were committed by or at the insistence of the defendants without probable cause or legal justification and with malice.
40. That said defendants were directly involved in the initiation of criminal proceedings against the plaintiff.
41. That said defendants lacked probable cause to initiate criminal proceedings against the plaintiff.
42. That said defendants acted with malice in initiating criminal proceedings against the plaintiff.
43. That said defendants were directly involved in the continuation of criminal proceedings against the plaintiff.
44. That said defendants lacked probable cause in continuing criminal proceedings against the plaintiff.

45. That said defendants acted with malice in continuing criminal proceedings against the plaintiff.
46. That said defendants misrepresented and falsified evidence throughout all phases of the criminal proceeding.
47. That said defendants misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
48. That said defendants withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
49. That said defendants did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
50. The criminal judicial proceeding initiated against plaintiff was dismissed on April 16, 2010, and terminated in the plaintiff's favor.
51. The arrest, imprisonment and prosecution of the plaintiff were malicious and unlawful because plaintiff had committed no crime and there was no probable cause to believe that plaintiff had committed any crimes.
52. The defendants actions were intentional, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against the plaintiff were false and untrue.
53. As a consequence of the malicious prosecution by the defendants, plaintiff suffered a significant loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated.
54. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C §
1983/NEW YORK STATE LAW

55. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 54 of this complaint as though fully set forth herein.
56. Prior to the plaintiff's arrest, the defendant officers forcibly entered into the subject premises, and thereafter conducted an illegal search of said premises, including the room that the plaintiff was in, without any legal warrant authorizing said entry or search.
57. That there were no exigent circumstances that justified the above-referenced entry by the defendant officers, or the subsequent illegal search that they conducted.
58. Following the plaintiff's arrest, the defendants searched the plaintiff, without any individualized reasonable suspicion that he was concealing any weapons or contraband.
59. As a result of the foregoing, the plaintiff was subjected to illegal and improper searches.
60. The foregoing unlawful searches violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.
61. As a consequence of said defendants' actions, the plaintiff suffered humiliation, mental anguish, depression, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: FAILURE TO INTERVENE/INTERCEDE

UNDER 42 U.S.C § 1983

62. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 61 of this complaint as though fully set forth herein.
63. Each and every individual defendant had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.

64. The individual defendants failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.

65. As a consequence of said defendants' actions, the plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and the plaintiff's constitutional rights were violated. The plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT
TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE
FABRICATION OF EVIDENCE

66. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 65 of this complaint as though fully set forth herein.

67. The individual defendants created false evidence against the plaintiff.

68. The individual defendants forwarded false evidence and false information concerning the plaintiff to the prosecutors in the Kings County District Attorney's office.

69. The individual defendants provided false testimony throughout the criminal proceedings.

70. By creating false evidence against the plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, the defendants violated the plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.

71. As a consequence of said defendants' actions, the plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and the plaintiff's constitutional rights were violated. The plaintiff hereby demands compensatory damages and punitive damages, in the

amount of to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: MUNICIPAL LIABILITY UNDER 42 U.S.C § 1983

72. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 71 of this complaint as though fully set forth herein.
73. The acts complained of were carried out by the individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
74. The defendant officers acted under color of law, in their official capacity, and their acts were performed pursuant to the customs, policies, usages, practices, procedures and rules of the City of New York and its police department.
75. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and its police department include, but are not limited to the following unconstitutional practices:
 - a. Wrongfully arresting individuals on the pretext that they are/were involved in illegal acts;
 - b. manufacturing evidence against individuals allegedly involved in illegal acts; and
 - c. arresting innocent persons in order to meet "productivity" goals (i.e. arrest quotas).
76. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against the City of New York in the state and federal courts.
77. The existence of the aforesaid unconstitutional customs and policies may also be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that commanders are permitted to set "productivity goals".

78. Furthermore, the existence of the aforesaid unconstitutional customs and policies may also be inferred from the ruling (Docket entry 32) of the Court, in the case(s) of Jose Colon v. City of New York, et al (09-cv-8) and Maximo Colon v. City of New York, et al (09-cv-9), wherein the Court stated, *inter alia*, that "*Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting officers of the New York City Police Department*", and that "*there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving the illegal conduct of the kind now charged*".
79. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, constituted a deliberate indifference to the safety, well-being and constitutional rights of all defendants, including but not limited to the plaintiffs; were the proximate cause of, and moving force behind, the constitutional violations suffered by the plaintiffs as alleged herein, and deprived plaintiffs of the following rights, privileges and immunities secured to him/her by the Constitution of the United States:
- (a) The right of the plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.
 - (b) The right of the plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.
 - (c) The right to be free from unreasonable detention and/or continued detention without probable cause in that the plaintiff was detained and subsequently prosecuted.

80. As a result of the actions of the defendants, the plaintiff was deprived of his rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983 and the laws of New York State, without just or legal cause when defendant City, by its employees and/or agents unlawfully arrested and imprisoned said plaintiff thereby depriving said plaintiff of his liberty without due process of law.

81. The defendant officers were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated said plaintiffs constitutional and civil rights, and the City of New York is therefore responsible for their acts, and liable to the plaintiff for the damages he suffered.

82. The actual principal/agent relationship between the City and the defendant officers was created by the fact they were employees of defendant City, and the City had the right to, and it did indeed regulate and control the activities and conduct of the defendant officers.

83. The defendants' actions were vicious, wicked, cold-hearted, intentional, malicious, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against the plaintiffs were false and untrue.

WHEREFORE, the plaintiff respectfully prays for judgment as follows:

1. For compensatory damages against each and all defendants in an amount to be proven at trial;
2. For exemplary and punitive damages against each and all defendants in an amount to be proven at trial;
3. For costs of suit herein, including the plaintiff's reasonable attorney's fees; and;
4. For such other and further relief as the court deems proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, each plaintiff demands a trial by jury.

Dated: Brooklyn, New York
April 14, 2011

LAW OFFICES OF WALE MOSAKU, P.C.

By: /s/

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